

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**In the Matter of
Certain Powered Rocker-Recliner and
Glider-Recliner Mechanisms and Seating
Units Containing Same**

Docket No. 3933

LIVING STYLE'S REQUEST FOR PARTIAL NON-INSTITUTION

Pursuant to 19 C.F.R. § 210.8(c)(1), Proposed Respondents Living Style Group, Ltd.; Living Style (Singapore) Pte. Ltd.; Living Style (Vietnam) Ltd.; and True Innovations & Design (USA) LLC (collectively, the “Living Style Respondents”) respectfully request that the Commission decline to institute an investigation into certain claims made in the August 21, 2026 Complaint filed by Complainants Ultra-Mek, Incorporated (“Ultra-Mek”), Leggett & Platt, Incorporated, and L&P Property Management Company (collectively, “Leggett & Platt” or “L&P”) (all Complainants collectively referred to as “Complainants”).

Specifically, while the Complaint expressly includes U.S. Patent No. 8,398,168 (“the ’168 Patent”) among the four asserted patents and purports to assert claims 1–7 and 15–18 of that patent against all proposed respondents, Complainants have not satisfied the Commission Rules with respect to the ’168 Patent and the Living Style Respondents. As such, the scope of any investigation should not include allegations of a violation of Section 337 by the Living Style Respondents with respect to the ’168 Patent.

I. THE COMPLAINT FAILS TO IDENTIFY ANY IMPORTATION OR UNFAIR ACT BY THE LIVING STYLE RESPONDENTS WITH RESPECT TO THE ’168 PATENT

First, the Complaint critically fails to identify even a single imported Living Style article that Complainants allege to practice the asserted claims of the ’168 Patent. The Complaint identifies just one article that it alleges is imported, sold for importation, and/or sold after importation by the Living Style Respondents—a Barcalounger rocker-recliner containing a Carya Smart 5115 rocker mechanism. Compl. ¶¶ 149–50. Complainants allege that this article infringes the other three asserted patents—U.S. Patent Nos. 8,016,348; 8,297,693; and 8,398,165—but omit any mention of the ’168 Patent with respect to this article. Compl. ¶ 150; *see also* Exs. 1–3. The *only* article for which Complainants purport to demonstrate infringement of the ’168 Patent is the COLAMY glider-recliner containing the Carya Smart 7115 glider mechanism—an article that

Complainants allege is manufactured, imported, and sold by a *different* set of proposed respondents, known as the “Henglin Respondents.”¹ Complainants notably do not allege that any of the Living Style Respondents have imported, sold for importation, or sold after importation the COLAMY glider-recliner containing the Carya Smart 7115 glider mechanism, let alone provide any factual evidence thereof. Nor could they—this COLAMY-branded product is not associated with and has never been imported, sold for importation, or sold after importation by any of the Living Style Respondents.

In short, the Complaint never provides the required allegations as to the Living Style Respondents and the ’168 Patent: it does not identify a Living Style article that both (1) has been imported, sold for importation, or sold after importation, and (2) is alleged, with the fact- and claim-specific showing required by the Commission’s Rules, to infringe the ’168 Patent.

II. THE COMPLAINT FAILS TO INCLUDE THE REQUIRED INFRINGEMENT CHART FOR A LIVING STYLE PRODUCT AND THE ’168 PATENT

Institution as to the Living Style Respondents and the ’168 Patent should be denied for a second, separate reason—Complainants do not include the claim chart required by the Commission Rules. Commission Rule 210.12(a)(9)(viii) requires a Section 337 complaint, “when practicable,” to include “a chart that applies each asserted independent claim of each involved U.S. patent to a representative involved article of each person named as violating section 337 of the Tariff Act or to the process under which such article was produced.” 19 C.F.R. § 210.12(a)(9)(viii). Complainants have simply not charted any claim of the ’168 Patent to any “representative involved article” of the Living Style Respondents.

¹ The proposed “Henglin Respondents” are Henglin Home Furnishings Co. Ltd.; Nanjing Hengning Home Furnishings Co., Ltd.; Aurora Maison, Inc.; Colamy, Inc.; Zhejiang Hengjian Home Furnishing Co., Ltd.; and Aerisnexus Innovations, Inc. Compl. ¶ 1.

That omission is particularly conspicuous because Complainants plainly knew how to satisfy the Rule and did so for the other three asserted patents, at least with respect to the Living Style Respondents.² Exhibits 1, 2, and 3 provide limitation-by-limitation charts applying the asserted claims of the other three asserted patents to the same product allegedly associated with the Living Style Respondents: the “Barcalounger / Living Style Powered Rocker-Recliner with Carya Smart 5115 Mechanism.” By contrast, Complainants’ ’168 Patent chart—Exhibit 6—addresses a different product associated only with a different group of proposed respondents: the same COLAMY glider-recliner containing the Carya Smart 7115 glider mechanism referring to above. Indeed, the Complaint’s own exhibit list makes the omission apparent on its face: three Living Style infringement charts are identified (for the other three asserted patents), while the ’168 Patent infringement chart is identified only for the COLAMY/Henglin product—which, as noted above, has never been sold for importation, imported, or sold after importation by any of the Living Style Respondents. Thus, this is not a situation in which Complainants were *unable* to identify and analyze a representative Living Style product. They obtained and extensively analyzed precisely such a product—but elected not to apply the ’168 Patent to it.

The language of Commission Rule 210.12(a)(9)(viii) is clear: the requisite charts must apply “each asserted independent claim of each involved U.S. patent to *a representative involved article of each person* named as violating Section 337.” 19 C.F.R. § 210.12(a)(9)(viii) (emphasis added). A chart purporting to establish infringement of the ’168 Patent by a Henglin/COLAMY article therefore cannot substitute for the chart the Rule requires with respect to Living Style, and Complainants cannot simply cure such a deficiency post-institution. The Rule’s claim chart

² However, Complainants similarly do not appear to have included a chart for a different patent—U.S. Patent No. 8,398,165—for any article associated with the Henglin Respondents.

requirement serves to identify, before an investigation is instituted, the concrete factual basis for subjecting a particular respondent to an investigation on a particular patent. Here, Complainants' charts against the Living Style product for other patents demonstrate that preparing such a chart was practicable; their unexplained omission of the '168 Patent from that analysis leaves the Complaint without the showing contemplated by Rule 210.12(a)(9)(viii).

III. CONCLUSION

Accordingly, the Commission should decline to institute an investigation against the Living Style Respondents with respect to the '168 Patent.

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By: /s/ Matthew J. Rizzolo

Matthew J. Rizzolo
Stephanie L. Roberts
MORGAN, LEWIS & BOCKIUS LLP
1111 Pennsylvania Avenue, NW
Washington, DC 20004-2541
Telephone: (202) 739-3000
E: matthew.rizzolo@morganlewis.com
E: stephanie.roberts@morganlewis.com

Ali Razai
MORGAN, LEWIS & BOCKIUS LLP
600 Anton Blvd., Ste. 1800
Costa Mesa, CA 92626-7653
Telephone: (714) 830-0600
E: ali.razai@morganlewis.com

*Counsel for Living Style Group, Ltd.;
Living Style (Singapore) Pte. Ltd.; Living
Style (Vietnam) Ltd.; and True
Innovations & Design (USA) LLC*

CERTIFICATE OF SERVICE

I, S. Alexandra Santos, hereby certify that on September 4, 2026, a copy of the foregoing document was served upon the following as indicated:

The Honorable Lisa R. Barton Secretary to the Commission U.S. International Trade Commission 500 E Street, SW, Room 112 Washington, DC 20436	☒ Via Electronic Filing (EDIS) ☐ Via First Class Mail ☐ Via Hand Delivery ☐ Via Express Delivery ☐ Not Served
<i>Counsel for Complainants Ultra-Mek, Incorporated, Leggett & Platt, Incorporated, and L&P Property Management Company</i>	
Aarti Shah KILPATRICK TOWNSEND & STOCKTON LLP 701 Pennsylvania Ave., NW, Suite 200 Washington, DC 20004 Matias Ferrario Alton Absher Andrew Rinehart Lawson Allen KILPATRICK TOWNSEND & STOCKTON LLP 1001 W. Fourth St. Winston-Salem, NC 27101	☒ Via Email: ashah@ktslaw.com mferrario@ktslaw.com aabsher@ktslaw.com arinehart@ktslaw.com lallen@ktslaw.com UltraMek-ITC-KTS@ktslaw.com ☐ Via Express Delivery ☐ Via First Class Mail ☐ Via Hand Delivery

/s/ S. Alexandra Santos
S. Alexandra Santos
Senior IP Dispute Paralegal
Morgan, Lewis & Bockius LLP